

Court No. - 2

Case :- WRIT - C No. - 1903 of 2023

Petitioner :- Kusum Srivastava

Respondent :- State Of U.P. Thru. Secy. Deptt. Of Energy Lko. And 4 Others

Counsel for Petitioner :- Suresh Kumar Upadhyay, Gaurav Pandey

Counsel for Respondent :- C.S.C., Manish Jauhari

Hon'ble Devendra Kumar Upadhyaya, J.

Hon'ble Subhash Vidyarthi, J.

Heard learned counsel for the petitioner and Sri Manish Jauhari, learned counsel representing the Madhyanchal Vidyut Vitran Khand, District Amethi.

Under challenge in this writ petition are the recovery proceedings initiated by the respondents-Distribution Company by issuing Demand Notice under Section 3 of U.P. Electrical Undertakings (Dues Recovery) Act, 1958 and consequently recovery certificate has also been sent to the Collector. The Recovery Officer i.e. Tehsildar, Amethi has accordingly issued a writ of demand under the provisions of U.P. Revenue Code, 2006 on 13.1.2023.

On query, it has been admitted by learned counsel representing the Distribution Company that though provisional assessment was made available to the petitioner, however, since the petitioner did not file any objection, the recovery proceedings have been initiated. He, however, could not satisfy the Court that even if no reply/objection to the provisional assessment was made by the petitioner, any final assessment order was passed. Under the Scheme of Electricity Act, 2003 read with Electricity Supply Code, after issuance of provisional assessment objections are invited from the consumer and thereafter final assessment order is passed. However, in this case it is only after provisional assessment that recovery proceedings have been initiated.

Admittedly, in this case no final assessment order has been passed.

Accordingly, in view of the aforesaid, the writ petition is **allowed**. The recovery proceedings initiated against the petitioner are hereby quashed. However, we direct the Distribution Company to furnish the provisional assessment order to the petitioner within 10 days from today and thereafter the petitioner shall furnish her reply to the said provisional assessment within a fortnight. Once the reply/objection to the provisional assessment order is made by the petitioner or if she

fails to make reply/objection within the time stipulated herein, the competent authority of the Distribution Company shall pass final assessment order and serve the same on the petitioner and it is only in case of non-payment of amount after service of final assessment order that it will be open to the Distribution Company to take coercive measures under the Act for realization of the amount.

(Subhash Vidyarthi, J.) (Devendra Kumar Upadhyaya, J.)

Order Date :- 3.3.2023

A.Nigam